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1 September 2023

The Manager
Market Announcements Office
Australian Securities Exchange

ELECTRONIC LODGEMENT

Dear Sir or Madam

Revised Securities Trading Policy

Please find attached a copy of a revised Securities Trading Policy lodged with the ASX in accordance with ASX Listing Rule 12.10.

A copy of the Securities Trading Policy is available on the corporate governance section of Incitec Pivot Limited's website at www.incitecpivot.com.au.



Authorised by: Richa Puri, Company Secretary

Incitec Pivot Limited

INNOVATION ON THE GROUND

Securities Trading Policy

Approved by the Board
(effective 1 September 2023)

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Securities Trading Policy

1 What is this Policy about?

The purpose of this Policy is to:

- ensure that public confidence is maintained in the reputation of Incitec Pivot Limited (**Company**) and its controlled entities (**Group**), directors and employees of the Group and in the trading of the Company's securities;
- outline the policy and procedures that apply to directors and employees when dealing in the Company's securities; and
- recognise that some types of dealing in securities are prohibited by law.

The Company will take a substance over form approach and will have regard to the intent and spirit of this Policy when applying and enforcing it.

2 Who must comply with this Policy?

This Policy applies to all Directors of the Company and Group employees (collectively, **Employees**).

Certain parts of this Policy apply only to **Restricted Persons** who, for the purposes of this Policy, are:

- Directors;
- other key management personnel of the Company and direct reports to the CEO (**Senior Executives**); and
- other persons who regularly possess inside information and who have been advised by the Company Secretary that they are subject to special restrictions under this Policy (**Nominated Employees**).

Restricted Persons must also take steps in relation to dealings by their **Connected Persons**. See section 5.5 for further information in relation to Connected Persons.

3 What are the rules about insider trading?

Broadly speaking, the Corporations Act provides that a person who has inside information about a company must not:

- buy or sell securities in a company, or enter in an agreement to buy or sell securities, or exercise options over securities, or otherwise apply for, acquire or dispose of securities (**deal**);
- encourage someone else to deal in securities in that company; or
- directly or indirectly provide that information to another person where they know, or ought to know, that that person is likely to deal in securities or encourage someone else to deal in securities of that company (**tipping**).

These restrictions apply to all securities, not just the Company's securities.

Inside Information is information that:

- is not generally available to the market; and
- if it were generally available to the market, a reasonable person would expect it to have a material effect (upwards or downwards) on the price or value of a security.

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Inside Information may include matters of supposition, matters that are not yet certain and matters relating to a person's intentions.

If you have any questions about Inside Information and your responsibilities, please discuss this with the Company Secretary.

4 Restrictions applying to all Employees**4.1 No dealing while in possession of inside information**

Employees must not deal in the Company's securities if:

- they are aware of Inside Information in relation to the Company; or
- the Company has notified Employees that they must not deal in securities (either for a specified period, or until the Company gives further notice).

4.2 The Front Page Test

It is important that public confidence in the Group is maintained. It would be damaging to the Group's reputation if the market or the general public perceived that Employees might be taking advantage of their position in the Group to make financial gains (by dealing in securities on the basis of Inside Information).

As a guiding principle, Employees should ask themselves:

If the market was aware of all the current circumstances, could I be perceived to be taking advantage of my position in an inappropriate way? How would it look if the transaction were reported on the front page of the newspaper? (The Front Page Test).

If the Employee is unsure, they should consult the Company Secretary.

Where any approval is required for a dealing under this Policy, approval will not be granted where the dealing would not satisfy the Front Page Test.

4.3 Dealing in other companies' securities

Employees may come into possession of Inside Information regarding another company where they are directly involved in client relationship management or negotiating contracts. For example, an employee may become aware that the Group is about to sign a major agreement with another company.

Employees must not deal in the securities in another company if they are aware of Inside Information in relation to that company, no matter how they came into possession of the Inside Information.

4.4 No dealing in blackout periods

Employees must not deal in Company securities:

- from the close of trading on the ASX on 30 September each year until the day after the announcement to ASX of the full year results (e.g. if the results are released on Monday, you can deal on Tuesday);
- from the close of trading on the ASX on 31 March each year until the day after the announcement to ASX of the half-year results (e.g. if the results are released on Monday, you can deal on Tuesday); and
- any other period that the Board specifies from time to time.

4.5 Exceptional circumstances

If an Employee needs to deal in securities during a blackout period due to exceptional circumstances and is **not** in possession of any Inside Information, then, they may apply for approval to deal following the process in section 6. Exceptional circumstances are likely to include severe financial hardship or compulsion by court order.

Approval to deal will only be granted if the Employee's application is accompanied by sufficient evidence (in the opinion of the person providing clearance) that the dealing is the most reasonable course of action available in the circumstances.

Unless otherwise specified in the approval, any dealing permitted under this section 4.5 must comply with the other sections of this Policy (to the extent applicable).

5 Additional restrictions applying to Restricted Persons

5.1 Approval required for dealing outside blackout periods

- (a) During any period that is not a trading blackout period under section 4.4, Restricted Persons must, prior to any proposed dealing, seek approval for the proposed dealing in the Company's securities.
- (b) Approval must be sought in accordance with the written request process set out below in section 6.
- (c) There are certain times during the year when approval under this Policy is more likely to be granted. These are the 4 week periods following the release of the Company's full-year and half-year results.
- (d) Restricted Persons who wish to seek approval to trade under this Policy are encouraged to do so during these periods. Trading at any time (even if approval has been obtained under this Policy) remains subject to the insider trading prohibition in the Corporations Act.

5.2 Margin lending arrangements

Restricted Persons are not permitted to enter into margin lending arrangements in relation to the Company's securities.

5.3 No short-term or speculative dealing

Restricted Persons must not deal in the Company's securities on a short-term trading basis. Short-term trading includes buying and selling securities on market within a 90 day period, and entering into other short term dealings (for example, forward contracts).

Selling shares received on vesting of entitlements under an employee, executive or director equity plan within 90 days of the vesting date is not a short-term dealing.

Restricted Persons must not deal in the Company's securities on a speculative basis, including short selling. Short selling involves borrowing and selling securities in the hope that they can be bought back at a lower price in the future to close out the short position at a profit.

5.4 Hedging of Company securities

Hedging includes entering into any arrangements that operate to limit the economic risk associated with holding the Company's securities.

Company securities acquired by a Restricted Person under an employee, executive or director equity plan operated by the Company must never be hedged prior to vesting.

Company securities held by a Restricted Person must never be hedged while they are subject to a holding lock or restriction on dealing under the terms of an employee, executive or director equity plan operated by the Company.

5.5 Directors – confirmation of trade required

Following any trade, Directors must promptly notify the Company Secretary, ideally by close of business on the day the trade is entered into. This is to assist the Company to comply with its disclosure obligations under the ASX Listing Rules.

5.6 Connected Persons

Restricted Persons must take appropriate steps to ensure that their "Connected Persons" only deal in securities in circumstances where the Restricted Person to whom they are connected would be permitted to deal under this Policy. For example, by obtaining clearance in accordance with this Policy in respect of the Connected Persons' dealings.

Connected Persons are:

- a family member who may be expected to influence, or be influenced by, the Restricted Person in his or her dealings with the Company or Company securities (this may include the Restricted Person's spouse, partner and children, the children of the Restricted Person's partner, or dependants of the Restricted Person or the Restricted Person's partner); and
- a company or any other entity which the Restricted Person has an ability to control.

6 Written request process

- (a) In order to request approval to deal under sections 4.5 or 5.1, you must complete a "Clearance to Trade Request Form" (in Schedule 1) and submit it to the Company Secretary, who will approve it or forward it for approval as follows:

Person seeking approval	Approver
Chairman of the Board	Chairman of the Audit & Risk Management Committee
All other Directors (including the CEO)	Chairman of the Board
Company Secretary	CEO
All other Employees	Company Secretary

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- (b) A request for approval to deal will be answered as soon as practicable. The approver, having consulted with members of management as appropriate, may:
- (1) grant or refuse the request;
 - (2) impose conditions on the dealing in their discretion.
- (c) The approver is not obliged to provide reasons for any aspect of their decision, and may revoke their approval at any time. If a request is not approved or an approval is revoked, that fact must be kept confidential.
- (d) If approval to deal is granted, the Employee will be notified in writing (which may include notification via email).
- (e) Following receipt of approval to deal, the approved dealing must occur within 5 business days following approval (or such other time specified in the approval), otherwise the approval is no longer effective and fresh approval must be sought.
- (f) Approval under this Policy is not an endorsement of the dealing. Personnel are responsible for their own compliance with the law.

7 Excluded Dealings

Sections 4.3, 4.4 and 5.1 of this Policy do not apply to:

- (a) participation in an employee, executive or director equity plan operated by the Company. However, where securities in the Company granted under an employee, executive or director equity plan cease to be held under the terms of that plan, any dealings in those securities must only occur in accordance with this Policy;
- (b) the following categories of trades:
 - acquisition of Company securities through a dividend reinvestment plan;
 - acquisition of Company securities through a share purchase plan available to all retail shareholders;
 - acquisition of Company securities through a rights issue; and
 - the disposal of Company securities through the acceptance of a takeover offer, scheme of arrangement or equal access buy-back;
- (c) dealings that result in no effective change to the beneficial interest in the securities (for example, transfers of Company securities already held into a superannuation fund or trust of which the Employee is a beneficiary);
- (d) trading under a pre-approved non-discretionary trading plan, where the Employee did not enter into the plan or amend the plan during a blackout period, the plan does not permit the Employee to exercise any influence or discretion in relation to trading under the plan and the plan cannot be cancelled during a blackout period, other than in exceptional circumstances;
- (e) an investment in, or trading in units of, a fund or other scheme (other than a scheme only investing in the Company's securities) where the assets of the fund or other scheme are invested at the discretion of a third party;

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- (f) dealings where the Employee is a trustee, trading in the Company's securities by the respective trust, provided the Employee is not a beneficiary of the trust and any decision to trade during a blackout period is taken by the other trustees or by the investment managers independent of the Employee; and
- (g) a disposal of securities of the Company that is the result of a secured lender exercising their rights.

However, given such dealings **remain subject to the insider trading rules** in the Corporations Act, Employees should still consider any legal or reputational issues (and discuss any concerns they have with the Company Secretary) before proceeding with the dealing.

8 What happens if this Policy is breached?

Breaches of this Policy will be regarded by the Company as serious and will be subject to appropriate sanctions. Any person who is suspected of breaching this Policy may be suspended from attending the workplace on full pay pending the outcome of investigations into the alleged breach. Any person who breaches this Policy could face disciplinary action (including forfeiture of securities and/or suspension or termination of employment).

Breaches of the insider trading laws have serious consequences for both the personnel concerned and the Company. Penalties under the Corporations Act include financial penalties and imprisonment.

9 Who should I contact?

Employees should contact the Company Secretary if they have any queries about this Policy.

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Schedule 1 - Clearance to Trade Request Form

Name of Employee	
Nature of agreement/dealing (sale/purchase/subscription) including number/value	
Proposed date of transaction (i.e., proposed completion date)	

I confirm that:

- (a) I am not in possession of any unpublished information which, if generally available, might materially affect the price or value of Incitec Pivot Securities; and
- (b) the transaction in Incitec Pivot Securities described above does not contravene the Securities Trading Policy of Incitec Pivot.

Signed:

Dated: